

Line 2

Case Name: *Heather Rhines v. Michael H. Scott, et al.*

Case No.: 21CV388088

See ORDER above. (In light of the **Notice of Settlement of Entire Case** filed by Plaintiff on the eve of trial on September 8, 2026, this Motion is **OFF CALENDAR.**)

Line 3

Case Name: *MV Campbell, LLC v. MOD Super Fast Pizza (California), LLC, et al.*

Case No.: 24CV442743

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff MV Cambell, LLC (“Plaintiffs”) moves under Code of Civil Procedure Sections 2030.290(b) and 2031.300(b) to compel Defendants MOD Super Fast Pizza (California) and Mod Super Fast Pizza, LLC (“Defendants”) to respond to Plaintiff’s Specially Prepared Interrogatories, Set One (“Special Interrogatories”), and Plaintiff’s Request for Production of Documents, Set Two (“RFPs”). Notice of Motion (the “Motion”) at 2:2-15 (filed: Jan. 29, 2026). Moreover, Plaintiff moves for sanctions under Code of Civil Procedure Section 2030.290(c) in the amount of \$1,960.00 for Plaintiff’s attorneys’ fees and costs for this Motion. *Id.* at 2:16-20.

The Motion came on for hearing on September 11, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

On November 21, 2025, Plaintiff properly served Defendants with Plaintiff’s Code-Compliant RFPs. Declaration of attorney Karsyn Stewart In Support of Motion (“Stewart Decl.”) at ¶¶ 4, 7. And on November 26, 2025, Plaintiff properly served Defendants with Plaintiff’s Code-Compliant Special Interrogatories, Set One. *Id.* at ¶¶ 3, 6.

Under California law, Defendants had a clear duty to provide timely, Code-Compliant responses to these discovery requests.

To be timely, Defendants’ responses to the RFPs were due within 30 days after service of them on Defendants on November 21, 2025. C.C.P. § 2031.260. Likewise, Defendants’ responses to the Special Interrogatories were due within 30 days after service of them on Defendants on November 26, 2025. C.C.P. § 2030.260

To be Code Compliant, Defendants’ responses must:

- For these Special Interrogatories, comply with Code of Civil Procedure Sections 2030.210 & 2030.220 by providing answers to each interrogatory that are as complete and straightforward as the information reasonably available to Defendants permits; C.C.P. §§ 2030.210 & 2030.220; *and*
- For these RFPs, comply with Code of Civil Procedure Sections 2031.210-2031.230 by stating: